

ALIBABA GROUP HOLDING LIMITED
NOTICE OF CASH INCENTIVE AWARD

Capitalized terms used but not otherwise defined in this Notice of Cash Incentive Award (the “Notice of Award”) shall have the respective meanings ascribed to them in the Cash Incentive Payment Award Agreement to which this Notice of Award relates (the “Agreement”). This Notice of Award shall form a part of, and be deemed incorporated into the Agreement.

Name of Employee: 杜岩松

Staff Number: 419238

We are pleased to inform you that Alibaba Group Holding Limited (the “Company”), on behalf of your Employer (as hereinafter defined), hereby grants you a cash incentive payment in the amount set forth below (the “Incentive Payment”):

Grant Number: 24-L023221

Incentive Payment: CNY 250,000

Vesting Commencement Date: 2024-04-01

First Vesting Date: 2024-07-01

Vesting Schedule

Subject to Sections 2(b), 2(c) and 5 of the Agreement, so long as you have remained an Eligible Service Provider, 6.25% of the Incentive Payment shall vest upon the First Vesting Date, and 6.25% of the Award shall vest on each three-month anniversary of the First Vesting Date, such that one-hundred percent (100%) of the Incentive Payment will be vested on the fourth anniversary of the Vesting Commencement Date.

By signing below (or clicking the “Accept” button), you represent that you have read this Notice of Award and the Agreement and agree to the terms and conditions set forth herein. You also agree that you accept as binding, conclusive and final all decisions, determinations and interpretations of the Employer with respect to any matter arising under this Notice of Award and the Agreement. You agree and acknowledge that it will be the sole and exclusive obligation of the Employer (as defined in the Agreement) to ensure that you receive payment of the vested portion(s) of the Incentive Payment if and when you have met the applicable vesting conditions. Your sole recourse to receive payment of any portion of the Incentive Payment that has become vested is to the Employer and not to the Company.

This Notice of Award and the Agreement are prepared in English. To the extent that this Notice of Award and the Agreement are translated from English into another language, and in the event of any discrepancy between the English and other language versions of this Notice of Award and the Agreement, the English version shall govern.

Sections 8 and 19(3) of the Electronic Transactions Law (2003 Revision) of the Cayman Islands shall not apply to this Agreement.

PARTICIPANT

杜岩松(419238)

Signature 杜岩松

ALIBABA GROUP HOLDING LIMITED

By: Joseph C. Tsai

Name: Joseph C. Tsai

Title: Chairman

ALIBABA GROUP HOLDING LIMITED CASH INCENTIVE PAYMENT AWARD AGREEMENT

This Cash Incentive Payment Award Agreement (this “Agreement”) sets forth the terms and conditions of the cash incentive payment (the “Incentive Payment”) granted to you by Alibaba Group Holding Limited (the “Company”) on behalf of and payable by 阿里巴巴（深圳）技术有限公司 or another entity within the Group that is your employer at the time of vesting (the “Employer”), as is set forth in the above Notice of Cash Incentive Award (the “Notice of Award”).

For the purpose of this Agreement, the following capitalized terms shall have the following meanings:

“Eligible Service Provider” means any person who is an employee, a consultant or a director belonging to the eligible function or role or business group of a Qualifying Employer, as determined in accordance with the applicable human resources policy as may be adopted from time to time. For the avoidance of doubt, if you are transferred to a Group Member or Related Entity that is not a Qualifying Employer, or if you are transferred to a different function or role or business group without any change of Employer, then in accordance with any applicable human resources policy as may be adopted by the Company and/or a Group Member from time to time, you may no longer be an Eligible Service Provider.

“Qualifying Employer” means any Employer(s), of which your service or employment with whom would qualify you for continued vesting of the Incentive Payment, as determined in accordance with the applicable human resources policy as may be adopted from time to time by the Company, the Employer and/or the business group to which the Employer belongs. For the avoidance of doubt, the entity within the Group in which you are employed at the time of signing this Agreement is a Qualifying Employer.

“Service Provider” means any person who is an employee, a consultant or a director of the Employer.

1. Right to Receive Payment

- (a) Subject to the terms of the Notice of Award and this Agreement, the Incentive Payment gives you the right to receive payment from the Qualifying Employer in cash, of the portion of the Incentive Payment that becomes vested on each applicable vesting date, in either (A) your local currency, or (B) if so determined by the Qualifying Employer in its sole discretion, in another currency, and the amount to be paid in such other currency shall be based on the relevant currency exchange rate in effect on each applicable vesting date, or another date as selected by the Qualifying Employer in its sole discretion.
- (b) It will be the sole and exclusive obligation of the Qualifying Employer to ensure that you receive payment of the vested portions of the Incentive Payment if and when you have met the applicable vesting conditions.

2. Vesting

- (a) Subject to Sections 2(b), 2(c) and 5 below, the relevant portion of the Incentive Payment shall vest if you are an Eligible Service Provider on the relevant vesting dates as set forth in the Notice of Award; provided, that you have remained an Eligible Service Provider.
- (b) If, during your employment or service with the Qualifying Employer, you are suspended from work pending investigation based on the Qualifying Employer’s reasonable belief that you have engaged in misconduct under applicable law or the Qualifying Employer’s policy, then, regardless of whether you receive compensation during the period of suspension, to the maximum extent permitted under Code Section 409A (if applicable), the Qualifying Employer have the discretion to postpone the vesting of any unvested portion of the Incentive Payment by up to the entire period of such suspension.
- (c) If you shall take any leave (whether due to sickness or any other personal reason), other than any annual leave pursuant to which you are entitled to continue to receive payment of your full base

salary for the entire period of such leave permitted under applicable law or under your employment or service agreement with the Qualifying Employer, for a duration equal to or longer than forty-five (45) calendar days cumulatively during each of the three-month periods commencing from the Vesting Commencement Date, (each as may be extended pursuant to Sections 2(b) or 2(c)), then, to the maximum extent permitted under Code Section 409A (if applicable), the Qualifying Employer shall have the discretion to postpone the vesting of any unvested portion of the Incentive Payment by the number of calendar days equal to:

- (i) the number of calendar days of such leave taken by you during each of the relevant aforesaid periods; or
- (ii) such shorter period as the Qualifying Employer may in its absolute discretion consider appropriate having regard to the relevant circumstances.

(d) For the avoidance of doubt, in the event that the vesting of the Incentive Payment is postponed in accordance with Sections 2(b) or 2(c), the relevant vesting date shall be deemed to be the date immediately after the end of such postponement or any other date as the Qualifying Employer shall reasonably determine.

3. Tax Withholding

- (a) By accepting this Agreement, you agree that, if the Qualifying Employer determines that it may be obligated under applicable law to withhold any taxes on your behalf in connection with the payment of any portion of the Incentive Payment, then the Qualifying Employer may in its sole discretion require you to pay such taxes by withholding such amount from the applicable payment that is equal to the taxes payable by you toward payment of such taxes, if permitted by applicable law.
- (b) The Qualifying Employer shall be entitled to demand payment (and withhold from salary or other compensation payable) of additional taxes if so required by subsequent amendments to applicable law and/or as requested by the relevant tax authorities. Subject to applicable law, the Qualifying Employer in its sole discretion shall be entitled to demand payment and withhold from salary or other compensation for any penalties and/or interest charged by any tax authority for late payment of any taxes.
- (c) YOU UNDERSTAND THAT THIS AGREEMENT AND THE TRANSACTIONS CONTEMPLATED HEREBY MAY HAVE TAX IMPLICATIONS THAT COULD RESULT IN ADVERSE TAX CONSEQUENCES TO YOU. YOU REPRESENT THAT YOU HAVE CONSULTED WITH, OR WILL CONSULT WITH, YOUR TAX ADVISOR AND YOU FURTHER ACKNOWLEDGE THAT YOU ARE NOT RELYING ON THE COMPANY AND /OR THE EMPLOYER FOR ANY TAX, FINANCIAL OR LEGAL ADVICE.

4. Payment of Incentive Payment

Subject to Section 1 above, the Qualifying Employer will, within a reasonable period of time following the date on which the applicable portion of the Incentive Payment vests, pay to you in cash the value of such vested portion of the Incentive Payment. To the extent necessary to comply with Code Section 409A, in all events the payment shall be made, as applicable, no later than March 15 of the calendar year that follows the calendar year in which the applicable vesting date set forth in the Notice of Award occurs.

5. Termination

- (a) Unless otherwise agreed by the Qualifying Employer, if your status as an Eligible Service Provider terminates, any portion of the Incentive Payment that is not vested shall be *ab initio* void and your right to receive payment with respect to such portion shall end on the date of the termination of your status as an Eligible Service Provider.

(b) If:

- (i) you are Terminated for Cause at any time;
- (ii) you commit a Competitive Offense during the term of your service as a Service Provider, or within twenty-four (24) months of termination of your status as a Service Provider;
- (iii) you breach any non-competition, non-solicitation or other restrictive covenant to which you are subject with respect to the Employer or any of its affiliates (the occurrence of which breach shall be determined in accordance with the governing law and, unless the Employer determines otherwise in its sole discretion, the dispute resolution provisions that are set forth in, or are otherwise applicable under, the agreement in which the applicable restrictive covenant is set forth);
- (iv) you commit an act or omission constituting Cause during the term of your service as a Service Provider; or
- (v) after termination of your status as a Service Provider, you commit any Specified Tortious Conduct;

then, subject to applicable laws, the unvested portion of the Incentive Payment shall be *ab initio* void and the vested portion of the Incentive Payment that has been paid to you must be promptly repaid by you in full to the Company and/or Employer as further described in Section 5(d) below (with any vested portion of the Incentive Payment that has not been paid to you at such time also being *ab initio* void).

(c) For purposes of Sections 5 and 9,

“Cause” means:

- (i) any commission by you of an act of theft, embezzlement, fraud, dishonesty, ethical breach or other similar acts, or commission by you of a felony or a lesser crime involving moral turpitude;
- (ii) any material breach by you of any agreement or understanding between you and any the Employer or any of its affiliates including, without limitation, any applicable intellectual property and/or invention assignment, employment, non-competition, confidentiality or other similar agreement (the occurrence of which breach shall be determined in accordance with the governing law and, unless the Employer determines otherwise in its sole discretion, the dispute resolution provisions that are set forth in, or are otherwise applicable under, the relevant agreement or understanding);
- (iii) any material misrepresentation or omission of any material fact by you in connection with your employment with the Employer or service as a Service Provider;
- (iv) any material failure by you to perform the customary duties as an employee, consultant or director, to obey the reasonable directions of a supervisor or to abide by the policies or codes of conduct of the Employer;
- (v) any conduct by you to make, procure, or arrange to be made any disparaging statement (including but not limited to any libel, slander or spreading of rumors) of the Employer or any of its affiliates, and any officer, employee or agent, both past and present, of the Employer or any of its affiliates, to any person by any means whatsoever that has material adverse impact on the Employer or any of its affiliates, and/or any officer, employee or agent, both past and present, of the Employer or any of its affiliates; provided, that this provision shall not apply to any conduct or communication that is protected by applicable law; or

(vi) any other conduct by you that is materially adverse to the name, reputation or interests of the Employer.

“Competitive Offense” means, as determined by the Employer:

- (i) you directly or indirectly, establish, incorporate, form, enter into, or participate in business as an owner, partner, principal or shareholder or other proprietor (other than through a purchase on the open market, solely as a passive investment, of not more than five percent (5%) of the interest) of any Competitor, or are taking any actions to do or prepare to do the aforesaid;
- (ii) you have become, are or become an officer, director, employee, consultant, adviser of, or otherwise, directly or indirectly, enter the employ of, continue any employment with or render any services to or for, any Competitor, or are taking any actions to do or prepare to do the aforesaid; or
- (iii) you knowingly perform or have performed any act that may confer a competitive benefit or advantage upon any Competitor.

“Competitor” means any business that is engaged in or is about to become engaged in any activity of any nature that competes with a product, process, technique, procedure, device or service of the Employer and its affiliates. The Employer may determine from time to time in its sole discretion a list of Competitors that will be applicable under this Agreement upon written notice to you.

“Specified Tortious Conduct” means (in each case as determined by the Employer): (i) the material breach of any duty of confidentiality you have towards the Employer or any of its affiliates (the occurrence of which breach shall be determined in accordance with the governing law and, unless the Employer determines otherwise in its sole discretion, the dispute resolution provisions that are set forth in, or are otherwise applicable under, the agreement in which the applicable duty is set forth or, if such duty arises under applicable laws, under the applicable law pursuant to which such duty arises); or (ii) any conduct to make, procure, or arrange to be made any disparaging statement (including but not limited to any libel, slander or spreading of rumors) the Employer or any of its affiliates, and/or any officer, employee or agent, both past and present, of the Employer or any of its affiliates, to any person by any means whatsoever that has material adverse impact on the Employer or any of its affiliates, and/or any officer, employee or agent, both past and present, of the Employer or any of its affiliates; provided, that this provision shall not apply to any conduct or communication that is protected by applicable law of the jurisdiction in which such conduct or communication occurred.

“Terminated for Cause” or “Termination for Cause” means, (i) the termination of your status as a Service Provider for Cause; or (ii) your termination without Cause or voluntary resignation as a Service Provider if the Employer determines at any time that, before or after your termination without Cause or resignation, it had Cause to terminate your status as a Service Provider.

- (d) Upon (A) your Termination for Cause, (B) your first commission of a Competitive Offense, (C) your first breach of any non-competition, non-solicitation or other restrictive covenant to which you are subject with respect to the Employer or any of its affiliates, (D) your first commission of an act or omission constituting Cause, or (E) your first commission of any Specified Tortious Conduct, then, subject to applicable laws, you are to forthwith remit to the Company all cash you received in payment of any vested portion of the Incentive Payment, and the Company and/or the Employer shall have the right to take all actions to effect the remittance from you of such amount, including the withholding from any salary or other compensation then owed to you.
- (e) For the avoidance of doubt, if you remit any cash to the Company pursuant to Section 5(d) above, the Company and/or the Employer shall be under no obligation whatsoever to refund any taxes or charge paid by you in connection with the payment of cash to you following the vesting of any portion of the Incentive Payment. You agree to make any and all efforts to timely seek the refund

to you of any taxes or charge paid by you in connection with (i) or (ii) of this Section 5(e) from any relevant tax and/or government authority. You further agree that you shall apply, without undue delay, any such refund received by you to carry out your obligations of remitting any cash pursuant to this Section 5.

6. No Guarantee of Continued Service

YOU SPECIFICALLY ACKNOWLEDGE AND AGREE THAT THE VESTING OF THE INCENTIVE PAYMENT PURSUANT TO THE VESTING SCHEDULE IN THE NOTICE OF AWARD IS EARNED ONLY BY CONTINUING AS AN ELIGIBLE SERVICE PROVIDER AT THE WILL OF THE QUALIFYING EMPLOYER (NOT THROUGH THE ACT OF BEING HIRED OR BEING GRANTED THE INCENTIVE PAYMENT). YOU FURTHER ACKNOWLEDGE AND AGREE THAT THIS AGREEMENT, THE TRANSACTIONS CONTEMPLATED HEREBY AND THE VESTING SCHEDULE SET FORTH IN THE NOTICE OF AWARD DO NOT CONSTITUTE AN EXPRESS OR IMPLIED PROMISE OF YOUR CONTINUED ENGAGEMENT AS A SERVICE PROVIDER FOR THE VESTING PERIOD, FOR ANY PERIOD, OR AT ALL, AND SHALL NOT INTERFERE IN ANY WAY WITH YOUR RIGHT OR THE RIGHT OF THE EMPLOYER TO TERMINATE THE RELATIONSHIP BETWEEN THE EMPLOYER, ON ONE HAND, AND YOU AS A SERVICE PROVIDER, ON THE OTHER HAND, AT ANY TIME, WITH OR WITHOUT CAUSE.

7. Notices

Notices required hereunder shall be given in person or by registered mail, courier, facsimile or e-mail to your address or facsimile number shown in the records of the Employer (or where the notice is given by e-mail, by sending it to the e-mail address provided by you), and to the Employer's address as provided by the Employer to you.

All notices required to be given under this Agreement shall be deemed to have been given and received (a) when personally delivered, or delivered by same-day courier; or (b) on the third business day after mailing by registered mail, postage prepaid, return receipt requested; or (c) upon delivery when sent by prepaid overnight express delivery service (e.g., FedEx, UPS); or (d) when sent by e-mail or facsimile (with a customary confirmation of transmission).

8. Heirs and Successors

This Agreement shall be binding upon, and inure to the benefit of, the Employer and its successors and assigns, and upon any person acquiring, whether by merger, consolidation, purchase of assets or otherwise, all or substantially all of the assets and business of the Employer.

Any benefits payable to you under this Agreement that are not paid at the time of your death shall be paid to the beneficiary or beneficiaries as you may designate in writing with the Qualifying Employer in such form and at such time as the Qualifying Employer shall require. If you fail to designate a beneficiary, or if your designated beneficiary dies before you or before complete payment of any vested amount distributable under this Agreement, the Qualifying Employer shall, in accordance with the terms of this Agreement direct that such vested amount be paid to:

- (i) one or more of your relatives by blood, adoption or marriage and in such proportion as the Qualifying Employer determines, or
- (ii) the legal representative or representatives of the estate of the last to die of you and your beneficiary.

9. Confidentiality

You agree that you shall, and shall cause your personal representative to, keep the Notice of Award and the Agreement, and the transactions contemplated hereby and thereby, confidential, and shall not disclose to any person or entity, or provide access to any person or entity to, such information, without the written consent of the Employer and the Company, unless you are required to disclose such information pursuant

to applicable law; provided, that, within a reasonable time before such disclosure, you shall consult with the Employer and use your best efforts to ensure that confidential treatment will be accorded to such information. The confidentiality obligation shall remain in force and effect after you and your personal representative are no longer entitled to payment of any portion of the Incentive Payment.

10. Amendment; Employer As Intended Third Party Beneficiary Under this Agreement

You hereby acknowledge and agree that, although the Employer is not a party to this Agreement, the Employer is an intended third party beneficiary of this Agreement and shall have the right to administer and enforce this Agreement as if it had been a party hereto.

This Agreement may be amended by the Employer and the Company at any time by written notice to you of such amendment, except that where any amendment shall be adverse to your interest (as determined by the Employer), this Agreement may only be amended by written agreement signed by the Employer or the Company on one hand, and you on the other hand.

11. Compliance with Laws; Severability

The granting, vesting and payment of the Incentive Payment under this Agreement is subject to compliance with all applicable laws, and to such approvals by any regulatory or governmental authority as may, in the opinion of counsel for the Employer, be necessary or advisable in connection therewith.

Any word, phrase, clause, sentence or other provision herein which violates or is prohibited by any applicable law, court decree or public policy shall be modified as necessary to avoid the violation or prohibition and so as to make this Agreement enforceable as fully as possible under applicable law, and if such cannot be so modified, the same shall be ineffective to the extent of such violation or prohibition without invalidating or affecting the remaining provisions herein.

12. Transfer of Personal Data

- (a) By accepting this Award, you are hereby given notice of the applicable data privacy rules and policies adopted by the Employer and the Company from time to time (the "Data Privacy Policy"), which sets out how your personal data will be used and shared by the Company and the Employer. The Data Privacy Policies of the Employer and the Company do not form part of this Agreement and may be updated from time to time.
- (b) To the extent necessary, you authorize, agree and unambiguously consent to the transmission by the Company and the Employer of any of your personal data related to the Incentive Payment for legitimate business purposes. You confirm and acknowledge that you give this authorization and consent freely.

13. Governing Law

This Agreement shall be governed by the laws of the Cayman Islands, except as otherwise provided herein.

14. Dispute Resolution; Legal Fees and Costs

- (a) Save as provided for in Section 14(i) below, any and all disputes, controversies or claims arising out of, relating to or in connection with this Agreement, including, without limitation, any such dispute, controversy or claim: (i) regarding this Agreement's existence, enforceability, arbitrability, validity or termination, or any performance or breach thereof; or (ii) with or against any present or former officer, director, employee, shareholder or agent of the Employer shall be referred to and exclusively and finally resolved by binding arbitration under the applicable rules specified in this Section 14. Notwithstanding the foregoing, nothing in this Section 14 will prevent the Employer or you from applying to a court of competent jurisdiction to seek to enjoin preliminarily or permanently any breach or threatened breach of any restrictive covenants to which you are a party with the Employer or any of its affiliates. **YOU IRREVOCABLY**

WAIVE ANY RIGHT TO CLAIM AGAINST THE COMPANY OR ANY OF ITS AFFILIATES IN CONNECTION WITH ANY DISPUTES, CONTROVERSIES OR CLAIMS COVERED BY THIS SECTION 14.

- (b) The arbitration will be conducted according to the following rules depending upon your location of employment or service in your most recent employment or service agreement with the Employer or, if following termination, your location of employment or service in your last employment or service agreement with the Employer (the “Location”), except to the extent modified by Section 14(i):
- (i) if such Location is in the United States, the rules of the American Arbitration Association (“AAA”) governing commercial arbitration in effect at the time of the arbitration;
 - (ii) if such Location is in the United Kingdom, the London Court of International Arbitration Rules (the “LCIA Rules”), which the LCIA Rules are deemed to be incorporated by reference into this Section 14; or
 - (iii) if such Location is in Hong Kong, Singapore, Taiwan, India or the People’s Republic of China (the “PRC”) or other jurisdictions (except for the United States and the United Kingdom), the Hong Kong International Arbitration Centre Administered Arbitration Rules (the “HKIAC Rules”) in force when the Notice of Arbitration is submitted in accordance with the HKIAC Rules.
- (c) The number of arbitrator(s) shall be one (1). The arbitration shall be held at: (i) if the Location is in the United States, the AAA arbitration center that is in, or nearest to, the county where the Location is; (ii) if the Location is in the United Kingdom, the London Court of International Arbitration (“LCIA”) arbitration center that is in, or nearest to, the city where the Location is; or (iii) if the Location is in Hong Kong, Singapore, Taiwan, India, the PRC or other jurisdictions (except for the United States and the United Kingdom), the Hong Kong International Arbitration Centre (“HKIAC”) in Hong Kong.
- (d) The language to be used in the arbitral proceedings shall be English, except as otherwise provided in Section 14(i).
- (e) The arbitrator (and if the Employer exercises its discretion under Section 14(i) below to bring proceedings in court, the court) shall apply the substantive law (and the law of remedies, if applicable) of the Cayman Islands without giving effect to the principles of conflicts of law, and will be without power to apply any different substantive law, except that the arbitrator, and the court if applicable, shall apply other substantive laws, procedural rules, and/or dispute resolution provisions as set forth in this Agreement. The parties waive, to the fullest extent permitted by law, any rights to appeal, or to review of, any arbitrator’s award by any court. **YOU AND THE EMPLOYER EACH IRREVOCABLY WAIVE ANY RIGHT TO A TRIAL BY JURY IN CONNECTION WITH ANY ACTION BROUGHT PURSUANT TO THIS SECTION 14.**
- (f) You and the Employer agree to maintain confidentiality as to all aspects of the arbitration, except as may be required by applicable law, regulations or court order, or to maintain or satisfy any suitability requirements for any license by any state, federal or other regulatory authority or body, including, without limitation, professional societies and organizations; provided, that, nothing herein shall prevent you or the Employer from disclosing information regarding the arbitration (i) for purposes of confirming, vacating or enforcing the award; (ii) for purposes solely related to preparing for and conducting the arbitration; and (iii) in confidence to attorneys and other professional advisors on a need-to-know basis. You and the Employer further agree to obtain the arbitrator’s agreement to preserve the confidentiality of the arbitration.
- (g) To the extent permitted by law, all disputes, controversies, or claims covered by this Section 14 (each a “Covered Claim”) must be brought in the parties’ individual capacity, and not as a plaintiff or class member in any purported class or collective proceeding. All Covered Claims will be decided on an individual basis in arbitration pursuant to this arbitration provision (subject

to the Employer's discretion to bring proceedings in court under Section 14(i) below). The parties expressly waive any right with respect to any Covered Claims to submit, initiate, or participate as a plaintiff, claimant or member in a class action or collective action, regardless of whether the action is filed in arbitration or in court. Furthermore, if a court orders that a class or collective action should proceed, in no event will such class or collective action proceed in the arbitration forum. Covered Claims may not be joined or consolidated in arbitration with disputes brought by other individual(s), unless agreed to in writing by all parties (or if the Employer exercises its discretion under Section 14(i) below to bring proceedings in court, Covered Claims may not be joined or consolidated in court proceedings with disputes brought by other individual(s) unless agreed to in writing by all parties and permitted by the court, or if ordered by the court). Notwithstanding any other provisions, any issue concerning the validity of this class or collective action waiver must be decided by a court and an arbitrator shall not have authority to consider the issue of the validity of this waiver. If, for any reason, this class or collective action waiver is found to be unenforceable, the class or collective action claim may only be heard in court. The arbitrator shall not have authority to hear or decide class or collective actions, or any representative actions on behalf of other former or current Service Providers who have been granted Incentive Payment awards. No arbitration award or decision will have any preclusive effect as to issues or claims in any dispute with anyone who is not a named party to the arbitration.

(h) **SUBJECT TO THE EMPLOYER'S DISCRETION TO BRING PROCEEDINGS IN COURT UNDER SECTION 14(i) BELOW, EACH OF YOU AND THE EMPLOYER HEREBY WAIVES, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE RIGHT TO SUE IN COURT, AS WELL AS ALL RIGHTS TO A TRIAL BY JURY, WITH RESPECT TO THE SUBJECT MATTER SET FORTH IN THIS SECTION 14.** You and the Employer each understand and agree that if any term or portion of this Agreement shall, for any reason, be declared by a court of competent jurisdiction to be invalid or unenforceable or to be contrary to public policy or any law, then the remaining terms and portions of this Agreement, as applicable, shall continue in full force and effect, as if the invalid or unenforceable term or portion thereof had not existed within this Agreement, and this Agreement, as applicable, may be modified to the extent necessary to make it enforceable, consistent with its fundamental purpose and intent. Further, any such decision with respect to the invalidity or unenforceability of any term or portion of this Agreement shall only be binding in the proceeding in which the decision was made.

(i) Notwithstanding Sections 14(a) to (h) above, the Employer (but not you) retains the sole discretion to commence proceedings in respect of any and all disputes, controversies or claims covered by Section 14(a) above in the courts (instead of arbitration) as set forth below or, in the case of the PRC, in the arbitral forum set forth below:

- (i) if the Location is in the United States, this Section 14(i) does not apply;
- (ii) if the Location is in the United Kingdom, the courts of England and Wales;
- (iii) if the Location is in the PRC, the China International Economic and Trade Arbitration Commission ("CIETAC") in Shanghai. In the event that the Employer exercises its discretion to commence proceedings in CIETAC, you hereby also agree to arbitration in CIETAC and not to select any other arbitral forum. In the event of an arbitration conducted in CIETAC, the parties agree that the CIETAC arbitration rules shall apply and shall be deemed to be incorporated by reference into this Section 14, the number of arbitrator(s) shall be one (1), and the language to be used in the arbitral proceedings shall be Chinese;
- (iv) if the Location is in Hong Kong, Singapore, Taiwan, India or other jurisdictions (except for the United States, the PRC and the United Kingdom), the courts of Hong Kong.

If the Employer exercises the discretion in accordance with this subsection (i), the other provisions of this Section 14 shall not be affected and shall continue to apply, to the extent not in conflict with this subsection (i).

- (j) In the event of any claim, dispute, lawsuit, arbitration or other proceeding (collectively “Legal Action”) between you and the Employer in relation to any dispute, controversy or claim covered by Section 14(a), you acknowledge and agree that the Employer is entitled to recover from you all reasonable attorneys’ fees, legal costs, investigation costs and other expenses in relation to such Legal Action including but not limited to any appeals thereof, if the Employer is the successful or prevailing party in such Legal Action, unless otherwise provided by applicable law. Such sum may be deducted from any payment due from the Employer or any of its affiliates to you, if permitted under applicable law. Your payment of the Employer’s attorneys’ fees, legal costs and other expenses under this Section 14(j) is in addition to any other relief to which the Employer may be entitled.

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